

2012 SCC OnLine All 3806 : (2013) 97 ALR 24 : (2013) 123 AIC
798 : (2013) 119 RD 41

(Allahabad High Court)

(BEFORE SATYA POOT MEHROTRA AND HET SINGH YADAV, JJ.)

Between

Mohammad Waseem

Versus

State of U.P. and another

C.M.W.P. No. 53332 of 2012

Decided on October 11, 2012

The Judgment of the Court was delivered by

SATYA POOT MEHROTRA and HET SINGH YADAV, JJ.:— The present writ petition has been filed by the petitioner, *inter alia*, praying for directing the respondent No. 2 to accept the entire electricity dues amount in easy instalments.

2. From the averments made in the writ petition, it transpires that as per the Bill dated 1.9.2012 (Annexure-3 to the writ petition), an amount of Rs. 79,663/- is due from the petitioner towards electricity charges.

3. The petitioner has made a representation dated 6.9.2012 before the respondent No. 2 (Executive Engineer, Electricity Distribution Division, Kaushambi), which is stated to be still pending, for accepting the payment of the aforesaid amount in instalments.

4. We have heard Shri Anand Kumar Singh, learned Counsel for the pe-titioner, the learned Standing Counsel appearing for the respondent No. 1 and Shri Mahboob Ahmad, learned Counsel for the respondent No. 2.

5. Shri Anand Kumar Singh, learned Counsel for the petitioner submits that the petitioner is ready to pay the entire amount of electricity dues in case he is permitted to deposit the same in instalments.

6. Shri Mahboob Ahmad, learned Counsel for the respondent No. 2 brings to our notice the provisions contained in Clause 6.14 of the U.P. Electricity Supply Code, 2005, which gives power to the licensee to extend facility of in-stalments. The said Clause 6.14 is as under:

“6.34. *Instalment Facility*:

- (i) The licensee may extend the facility of instalments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

- (ii) No officer below the rank of Executive Engineer shall grant instalments. The Executive Engineer, /DGM/ and General Manager can grant up to maximum of two, three or four monthly instalments respectively. However first instalment shall not be less than 40% of the total amount. Where the amount for instalments exceeds Rs. 10,000 (Ten Thousand), the consumer



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shall be asked to deposit post dated cheques of the instalments to the licensee.”

7. Having regard to the facts and circumstances of the case and having considered the submissions made by the learned Counsel for the parties, we are of the view that the interest of justice would be subserved in case the writ petition is disposed of with the following directions:

1. The petitioner will make an application before the respondent No. 2 by 31.10.2012 alongwith a copy of the aforesaid representation dated 6.9.2012 and a certified copy of this order.
2. On receipt of such application alongwith the aforesaid documents, the respondent No. 2 will proceed to consider the representation of the pe-titioner and pass appropriate orders thereon in accordance with law expe-ditiously, preferably by 20.11.2012.
3. Till 26.11.2012 or till the disposal of the representation of the petitioner by the respondent No. 2, whichever is earlier, the petitioner will not be compelled to pay the amount of the aforesaid Bill dated 1.9.2012, pro-vided within three weeks from today, the petitioner deposits an amount of Rs. 15,000/- with the respondent No. 2.
4. In the event of default on the part of the petitioner in complying with any of the aforesaid conditions, this order will stand automatically vacated.

8. *Petition Disposed Of.*

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